



POLICE DEPARTMENT CITY OF NEW YORK

January 16, 2017

MEMORANDUM FOR: Police Commissioner

Re: Detective Jim Rosado
Tax Registry No. 902321
Investigative Support Division
Disciplinary Case No. 2015-14937

Charges and Specifications:

1. Said Detective Jim Rosado, while assigned to the Investigative Support Division, on October 16, 2015, while off duty, engaged in conduct prejudicial to the good order and efficiency of the Department, to wit, said Detective engaged in a physical altercation with Person A

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS
PROHIBITED CONDUCT

Appearances:

For the Department: Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway-Suite 2340
New York, NY 10279

Hearing Date:

October 4 and 14, 2016

Decision:

Guilty

Trial Commissioner:

ADCT Paul M. Gamble

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 4 and 14, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Police Officer Oldophe Romulus, Sergeant Jianping Zeng, Sergeant Maureen Keag and Sergeant Allison Mullen as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

The following is a summary of the facts which are not in dispute in this case.

On October 16, 2015, at approximately 2200 hours, Person A was at [REDACTED] the home she shares with Respondent and their four children: Minors 1, 2, 3 and 4¹. Person A was watching a television show with Minor 3, and Minor 4 was using her tablet in the same room. At that time, Respondent stated that

everyone had to put their tablets away because of the hour. Minor 4 became upset and began screaming. Respondent responded verbally and engaged in actions which are disputed.

Shortly thereafter, Person A seized Respondent's Play Station 4 ("PS4"), taking it into the kitchen and smashing it. Person A directed the children to get dressed and waited in her son's room (Department Ex. 1).

An altercation ensued, the nature of which is in dispute. After the altercation, Person A descended a staircase, took Minor 4, and ran from the apartment with the rest of the

¹ Two of the children, [REDACTED] and [REDACTED] are from prior relationships.

children. Person A attempted to flag down a B-16 bus unsuccessfully. Respondent took out a mobile phone, held it up and told Person A that he was recording the incident. Respondent then took Minor 4 back to the apartment with him (*Id.*).

Person A, Minors 1, 2 and 3 ran down to [REDACTED] where she stopped to call 911 (*Id.*). Person A told the 911 operator that Respondent, whom she identified by name, rank and shield number, had beaten her and threatened to kill her; that she was with outside with her children; that Respondent had [REDACTED] year old Minor 4 with him; and that he had been videotaping them (Department Ex. 1, 9). Person A stated that she did not need medical assistance but that she was experiencing pain in her right ear from where Respondent hit her (*Id.*).

At approximately 2230 hours, Police Officer Oldophe Romulus responded to [REDACTED] where he encountered Person A and her children. Person A identified herself as Respondent's [REDACTED] and told Officer Romulus that she had been involved in a verbal dispute concerning the children being awake past 2200 hours while using a tablet (T. 12). Person A stated that Respondent became upset, destroyed his son's PS3, and then continued the verbal dispute with her (*Id.*). Person A told Officer Romulus that she attempted to leave the apartment with the children but Respondent removed the youngest child, Minor 4, from Person A's arms, then struck Person A in the face three times (T. 13, Department Ex. 1). Officer Romulus described Person A's demeanor as "a little hysterical, like excited, and crying" (T. 13). Officer Romulus noticed that Person A had a moderate smell of alcohol on her breath (*Id.*).

Officer Romulus requested that a supervisor respond to the scene. At approximately 0021 hours, Sergeant Jianping Zheng responded to the location. Officer

Romulus and Sergeant Zheng entered the residence and, directed by Person A, discovered Respondent asleep in a bed with his daughter, Minor 4 (T. 14). Minor 4 was removed from the room, Respondent was awakened and transported to the 66th Precinct by Sergeant Zheng (T. 15). Person A and the children were transported to the precinct by Officer Romulus (*Id.*).

At the precinct, Officer Romulus interviewed Person A and prepared a Domestic Incident Report and an accompanying affidavit, which was admitted into evidence as Department's Exhibit 1 (T. 17). The report indicates that it was filled out at approximately 2307 hours (Department Ex. 1). In the affidavit, Person A asserted that Respondent had struck her three times and stated that he would kill her (*Id.*). The affidavit is written in Person A's own hand and is signed by her (*Id.*). Officer Romulus also prepared a Complaint Report which was admitted into evidence as Department's Exhibit 2 (T. 25). Officer Romulus observed a small abrasion inside Person A's lip which she reported as well (T. 27). Officer Romulus had previously noticed the abrasion at the time he responded to Person A's home (T. 36). Officer Romulus took a photograph of Person A's lip depicting the aforementioned abrasion which was admitted into evidence as Department's Exhibit 3 (T. 27). Finally, Romulus completed an Aided Report based upon the injury to Person A's lip which was admitted into evidence as Department Exhibit 4 (T. 30).

When Sergeant Jianping Zheng responded to [REDACTED] at 0021 hours, he met Person A, who told him that she and Respondent had a dispute over their children failing to turn off their electronic devices at 2200 hours (T. 50, 65-66). Person A told Sergeant Zheng that the dispute degraded to the point where Respondent

destroyed his stepson's PS3 and that she, in response, destroyed Respondent's PS4.

Person A told Sergeant Zheng that when she attempted to leave the apartment with their children, Respondent slapped her in the face three times and caused an abrasion to the inside of her upper right lip (T. 50). During this initial meeting, Sergeant Zheng observed that Person A was crying and that he smelled alcohol on her breath (T. 50, 67). Sergeant Zheng also observed that s face was red and that she had an abrasion inside her upper lip (T. 67-68, 69).

Sergeant Zheng took photographs of the damaged PS3, PS4 and a fish tank, all of which were entered into evidence as Department Exhibits 5A, 5B and 5C (T. 51-55).

Sergeant Zheng directed Respondent to get dressed and transported him to the 66th Precinct (T. 50, 64). At the precinct, Sergeant Zheng interviewed Respondent about the dispute. In this interview, Respondent admitted to having a dispute with Person A over the children's failure to turn off their electronic devices at 2200; admitted to destroying the PS3; stated that Person A destroyed the PS4 and a fish tank (T. 56-57). When

Sergeant

Zheng asked Respondent if he had struck Person A, he stated that he had not (T. 79).

Sergeant Zheng made notifications to the Duty Captain and the investigation was taken over by Brooklyn South Investigations (T. 64).

Sergeant Maureen Keag, assigned to Brooklyn South Investigations, responded to the 66th Precinct on October 17, 2015 to interview Person A and Respondent in connection with Person A's allegations. Sergeant Keag met with Person A at approximately 0435 hours and conducted a recorded question and answer session with her (T. 100). The recording

and the transcript of the interview were admitted into evidence as Department Exhibits 8 and 8A² (T. 91-93).

During the interview, Person A told Sergeant Keag that at approximately 2200 hours on October 16, 2015, she and Respondent had a disagreement because Respondent wanted their children to turn off their electronic devices due to the hour. At the time of the disagreement, Person A was in a bedroom with Minor 3 and Minor 4. Minor 4 was watching a television show on an iPad. When Respondent raised his objections, Person A took the iPad from Minor 4 and hid it behind her back. Respondent then left the room, went to the living room where he obtained a PS3, then smashed it on the floor (T. 89-90).

Person A left the bedroom and went to the living room, where she and Respondent began to argue. Person A eventually told the children to get dressed because they were leaving. As they were attempting to leave the apartment, Person A and Respondent engaged in a "tug of war" over Minor 4. Person A claimed that it appeared that Minor 4 wanted to stay with Respondent rather than leave. While Person A and Respondent struggled for Minor 4, Respondent struck Person A with an open hand three times in her face; as a result, she suffered an injury to her face (T. 90). Person A stated that both she and Respondent had been drinking; that she believed alcohol had contributed to the dispute; and that both of them could benefit from alcohol counseling (T. 90-91). Person A further admitted that she had taken Respondent's PS4 and damaged it (T. 92).

² Respondent objected to the Tribunal's consideration of assertions contained in Person A's 911 call, the Domestic Incident Report, the Aided report and her statement to Sergeant Teag that Respondent had struck her on previous occasions. The Department argued that the allegations should be considered for the sake of completeness. Although the aforementioned pieces of evidence were properly admitted, the Tribunal did not consider the allegations of uncharged misconduct contained therein for any purpose and are deemed stricken from the record.

Sergeant Keag also interviewed Respondent, who admitted in his interview that he and Person A had a dispute over the use of electronic devices after 2200 hours but he denied striking her (T. 96). While Person A told Sergeant Keag that Respondent had used his mobile phone to film her and their children as she left their apartment, Respondent never mentioned any video recording and Brooklyn South Investigations never determined whether the recording, as described by Person A, existed (T. 97-98). Sergeant Keag observed that during their respective interviews, Person A appeared to be under the influence of alcohol to a greater degree than Respondent but not to the extent that Sergeant Keag considered Person A's ability to perceive the events she reported to be compromised (T. 98-99, 101).

Sergeant Allison Mullen, assigned to the OCCB Investigations Unit, conducted a follow-up investigation regarding the alleged misconduct in this case. Sergeant Mullen reviewed the 911 recording, the Domestic Incident Report, the Complaint Report and interviews of Person A, as well as the Duty Captains UF-49 report (T. 115). On October 28, 2015, Sergeant Mullen interviewed Person A by telephone. During that interview, Person A stated that on the night of the incident, she had consumed more alcohol than she should have which contributed to the dispute over the children's use of electronic devices after 2200 hours (T. 116). Person A, in response to Sergeant Mullen's questioning on the statements contained in the Domestic Incident Report, claimed that Respondent had not hit her and that she had not sustained an injury as a result of being struck by any blows (*Id.*, 133). Person A claimed further that the argument was her fault (*Id.*). Sergeant Mullen testified that the person she spoke with on the telephone that day had the same voice as the person identifying herself as Person A on the 911 recording (T. 117). Person A also told

Sergeant Mullen that Respondent had not destroyed his stepson's PS3; instead, she claimed that Respondent had unplugged the wireless router from the wall (T. 131-132). Person A also told Sergeant Mullen that Respondent had never threatened her; that he was a good father and husband; and that she realized the day after the incident that she was mistaken in some of her statements to the police which she attempted to correct by calling "the Sergeant from the previous night" (T. 133-134). At the time of this interview, Respondent had not been arrested; he and Person A were still living together (T. 137).

Sergeant Mullen testified that in her interview with Respondent, he acknowledged removing the router from Minor 1's room (T. 132). At no point during their interview did Respondent discuss or produce a video recording of Person A (T. 136-137).

At issue in this case is whether Respondent engaged in a physical altercation with Person A. Based upon the relevant, credible evidence, I find that Respondent initiated and engaged in a physical altercation with Person A and that such conduct was prejudicial to the good order and efficiency of this Department.

Respondent testified that on October 16, 2015, he worked an early tour, either 1000 hours to 1800 hours or 0900 hours to 1700 hours (T. 152). On that date, Minor 3 and Minor 4, [REDACTED] were [REDACTED] and [REDACTED] years old, respectively (T. 152-153). Minor 2, Respondent's [REDACTED] from a previous relationship, was [REDACTED] years old on that date (T. 153). Minor 1, Person A's son from a previous relationship, was [REDACTED] years old (T. 154). Minors 1, 3 and 4 resided with Respondent and Person A on the day of the incident (*Id.*).

Respondent testified that he worked some overtime hours, then met his [REDACTED] Minor 2 outside his office building before driving to his home with her (T. 155). Minor 2 was going to spend the evening with Respondent by prior arrangement with her mother (*Id.*). At approximately 2100 hours, Respondent and Minor 2 arrived at [REDACTED] [REDACTED] (T. 155-156). Respondent ate dinner with Minor 2 and planned to go to bed, as he felt tired from the work day (T. 156). Respondent admitted consuming some [REDACTED] alcoholic beverage (*Id.*). According to Respondent, Person A was drinking heavily, to the point where she became intoxicated (T. 157).

At approximately 2200 hours, Respondent told Minor 4 that she had to turn off her iPad (*Id.*). Minor 4 became upset and began screaming and crying (*Id.*). Person A argued that Minor 4 should be allowed to continue using the iPad but Respondent insisted that the 2200 rule, purportedly imposed by Person A, had to be followed (T. 158). Respondent went to Minor 1's room where the wireless router was located and disconnected it, effectively disabled all the electronic devices in use at the time (T. 158-159). Respondent brought the router to the living room and placed it on a table so that everyone could see it had been disconnected (*Id.*).

According to Respondent, Person A became angry and "started going off" on him (*Id.*). Person A then took Respondent's PS, disconnected it forcibly and threw it into the kitchen (T. 160). Person A picked up additional items and threw them at Respondent, then smashed a fish tank in the kitchen (*Id.*). Person A then removed a souvenir from the refrigerator and threw it at Respondent, breaking it in the process (*Id.*). While Person A was throwing items at Respondent, the children were crying and seemed afraid (*Id.*).

Respondent testified that he attempted to calm Person A down while keeping the children behind him because there was broken glass all over the kitchen (*Id.*).

As a result of the tumult Minor 2., who had been falling asleep, woke up and told Respondent that she wanted to go home (T. 162). Respondent made arrangements with Minor 2's mother to meet him at the [REDACTED] train station, where he would return Minor 2 to her (*Id.*). Respondent and Person A cleaned up the debris in the kitchen while Minor 2 dressed, then he and Minor 2 left the house (*Id.*). Respondent intended to walk to the [REDACTED] station a few blocks away, then ride with Minor 2 on the [REDACTED] train to [REDACTED] (T. 163). Person A declared her intention to join Respondent and [REDACTED], and stepped out of the house with Minor 4 (*Id.*). Minor 4 was screaming and crying as she left the apartment (T. 164). Respondent denied attempting to remove Minor 4 from Person A's arms or striking Person A (T. 165).

As Respondent left the apartment with Minor 2, Person A, Minors 1, 3 and 4 followed him onto [REDACTED] (T. 166). Person A was walking in the street while holding Minor 4 who was still crying (*Id.*). Respondent stopped, took out his mobile phone and began videotaping Person A (*Id.*). Person A, who apparently noticed that Respondent was filming her, put Minor 4 down and ran on [REDACTED] toward [REDACTED] (*Id.*). Minor 4 went to Respondent, while Minors 1, 2 and 3. went with Person A (*Id.*). Respondent returned to his apartment with Minor 4 and put her to bed (*Id.*). Respondent testified that he did not call 911 because Person A was intoxicated and it was "very embarrassing" (*Id.*). Respondent testified that he became aware that Person A had called 911 after he was awakened in his apartment by police officers standing in his bedroom (T. 167).

On cross-examination, Respondent acknowledged that the PS3, based upon a review of Department Exhibit 5A in evidence, had also been damaged and was found in the kitchen (T. 173). Respondent also conceded that during his videotaping of Person A, he asked her why she was so upset and she responded, "You hit me" (T. 185).

Respondent testified that while he and Person A were offered alcohol counseling, he did not believe she attended the counseling sessions, although Person A told him she did (T. 188). Respondent challenged Person A's assertion that she suffered a laceration to her lip as a result of him striking her by asserting that she suffers from chronic dry lips and that she picks her lips, especially when she is drinking (T. 196-197).

Finally, Respondent stated he had no concern about Person A. and Minor 2's well-being after he left them on the street, despite his characterization of her state of mind as intoxicated and out of control (T. 197). Respondent stated he believed that Person A would walk around the block and return home (T. 197). Respondent testified that Minor 2 resided with her mother on [REDACTED] [REDACTED] near the [REDACTED] train and about a [REDACTED] minute ride from his apartment on the [REDACTED] train (T. 198). When asked if he assumed Person A would escort Minor 2 home on the subway, Respondent stated that he did not (*Id.*). When asked how Minor 2 would return home if Person A returned to their apartment, Respondent stated, "I figured her mother would come all the way if she had to" (*Id.*).

Few things are more difficult, yet more fundamental to the role of a trier of fact, than attempting to reconstruct past events on the basis of opposing accounts. In a hearsay case of this nature, particular attention must be paid to the evidence. This tribunal has held many times that while hearsay is admissible in administrative proceedings, and may

be the sole basis for a finding of fact, it must be carefully evaluated before it is relied upon. The more important the evidence is to the case, the more critically it should be assessed (*Police Department v. Acosta*, OATH Index No. 464/00 [Jan. 7, 2000]).

Factors such as corroboration, consistency, bias, logic and the degree to which an account comports with common sense and general human experience must be taken into account (*Maloney v. Suardy*, 202 A.D.2d 297, 609 N.Y.S.2d 179 [1st Dep't 1994]).

In this case, untangling the truth from the record is particularly onerous because Respondent and Person A have a complicated relationship. First, since Respondent is a parent employed by the Department, their economic interests in the outcome of this case are inexorably intertwined.

Second, although Person A had an opportunity to testify at this trial, she did not appear. This is not unusual for victims of violence. Moreover, the charges here carry the potential for serious consequences and even stigma beyond the context of Respondent's current employment. A parent could be concerned about their child learning that their father had been accused of assaulting their mother.

Third, both Respondent and Person A appear to concede that their consumption of alcohol is an issue in their relationship. While Respondent asserted that he took advantage of alcohol counseling provided by this Department after the incident, he expressed doubt about Person A's claim that she attended the counseling as well. It is unclear whether there is a basis for him to question her veracity on this point or his assertion was a gratuitous swipe at a witness who was not in a position to refute his claim.

This record contains several facts that weigh against the credibility of the complaining witness, Person A. First, Person A conceded in her Domestic Incident Report affidavit and her statement to Sergeant Keag that she had been drinking prior to the altercation. Second, Person A made a statement to Sergeant Mullen some twelve days after the incident in which she not only recanted her allegation that she had been struck by Respondent, she asserted that she had consumed more alcohol than she should have and was at fault for the argument.

This evidence certainly creates doubt about the truthfulness of Person A's account. In fact, Respondent has urged that her allegations be dismissed as a fabrication. This tribunal, however, must weigh this evidence against the entire record. While Officer Romulus, Sergeant Zheng and Sergeant Keag all testified that they detected an odor of alcohol on Person A's breath, none expressed an opinion that, whatever her level of intoxication was, it affected her ability to perceive the facts as she reported them. While Respondent has no burden of proof during these proceedings, he did testify that he began recording Person A with his mobile phone due to her supposed erratic behavior on the street. Respondent further asserted that Person A was in a drunken state.

Respondent has an interest in Person A being perceived by the finder of fact as incapable of making credible allegations against him. Furthermore, Person A's assertion that she was drunk was made twelve days after the incident and after a period where she and Respondent were living together. It is also noteworthy that Person A's and Respondent's interviews with Sergeant Mullen each contained a new assertion that Respondent had removed a wireless router from Minor 1's room and not a PS3. While there is no direct evidence that Respondent or anyone else actually endeavored to persuade

Person A to amend her statement, it would be naïve to ignore the strong potential for witness intimidation when a victim of domestic violence continues to cohabit with her alleged abuser. Since there is independent evidence of Person A's consumption of alcohol, her level of inebriation on the evening of the incident remains a factor to be considered in assessing her credibility but does not render her statements incredible in and of themselves. After carefully considering the conflicting accounts, this tribunal concludes that her version of the disputed portion of the incident was the more logical one under the circumstances.

I credit the following statements made by Person A: (1) her statements on the 911 call; (2) her oral statement to Officer Romulus; (3) her oral statement to Sergeant Zheng; (4) her statements contained in the Domestic Incident Report Affidavit; and (5) her statement to Sergeant Keag. I credit these statements as logical, plausible, and consistent with each other and with other evidence in the case.

A spontaneous declaration or excited utterance made contemporaneously or immediately after a startling event -- which asserts the circumstances of that occasion as observed by the declarant may be admitted into evidence as an exception to the hearsay rule (*People v. Edwards*, 47 N.Y.2d 493, 496-497 [1979]). Underlying this exception is the assumption that a person under the influence of the excitement precipitated by an external startling event will lack the reflective capacity essential for fabrication and, accordingly, any utterance he makes will be spontaneous and trustworthy (*People v. Edwards*, 47 N.Y.2d 493, 497).

In this case, Person A made a call to 911 within ten minutes of being involved in what can be reasonably described as a startling event: a verbal and physical altercation

with Respondent, in the presence of her children, over the enforcement of a house rule. The altercation grew heated enough for household items to have been broken. The culmination of this altercation, as Person A alleged in the call, was Respondent beating her and threatening to kill her. Person A hurriedly dressed her children and left the apartment with them on foot. Once she fled the apartment, Person A was pursued by Respondent who questioned her mental state and who recorded her with his mobile phone. Person A attempted to flag down a bus which did not stop for her. During this attempt to leave the area, Minor 4 was crying. Person A eventually surrendered Minor 4 to Respondent, who returned with Minor 4 to the apartment. This spectacle took place on a public street, in view of her children, somewhere between 2200 hours and 2230 hours.

Under these circumstances, supported by the obviously unnerved tone of voice depicted in Department Exhibit 9A, Person A's statements to the 911 operator qualify as an excited utterance (*People v. Johnson*, 129 A.D.3d 486 [1st Dept. 2015]; *People v. Gantt*, 48 A.D.3d 59, 64 [1st Dept. 2007]). Her consumption of alcohol prior to the 911 call is merely a factor to be considered in the determination of whether, at the time the statement was made, she was operating under the influence of a startling external event (see *People v. Benanti*, 158 A.D.2d 698, 699 [2d Dept. 1990]; *People v. Egan*, 78 A.D.2d 34, 37 [4th Dept. 1980]).

Similarly, the statements Person A made to Officer Romulus and Sergeant Zheng also qualify as excited utterances. When Officer Romulus first encountered Person A at approximately 2230 hours, she was crying and hysterical. When Sergeant Zheng saw Person A at approximately 0021 hours, she was still crying.

The statements made to Officer Romulus and Sergeant Zheng also bear indicia of reliability based upon corroboration of factual assertions contained within them. Person A's declaration to Officer Romulus that she was struck in the face three times appeared to be corroborated by the presence of an injury to her lip in the area where she claimed to have been struck, as he noted in the Domestic Incident Report and on the Aided Form. Person A's declarations to Sergeant Zheng that Respondent had struck her in the face three times and had damaged a PS3 were corroborated by his observations of an abrasion to Person A's lip and broken electronic consoles inside the apartment.

I find that the affidavit Person A made at 2307 hours bears indicia of reliability because it was reduced to writing in Person A's own hand, at a time near the events described in the document, sworn and signed, permitting the inference that Person A was aware of the gravity of her statements and the requirement that they be truthful. The factual assertions made in the written statement are consistent with the allegations Person A made in the 911 call and her oral statements to Officer Romulus and Sergeant Zheng. Person A's allegations are further corroborated by the independent observations of Officer Romulus and Sergeant Zheng. Accordingly, I find this statement to be reliable.

Similarly, Person A's statement to Sergeant Keag, made at 0435 hours on October 17th, contains factual assertions consistent with the assertions Person A made in the 911 call; the oral statements to Officer Romulus and Sergeant Zheng; and the affidavit in the Domestic Incident Report. Person A's factual allegations are also supported by the independent observations of Officer Romulus and Sergeant Zheng, as discussed above. Based upon the foregoing, I find this statement to be reliable.

The crux of Person A's statements, as discussed above, is that Respondent hit her. I find that the central allegation in this case was further corroborated by Respondent's admission on cross-examination that when he asked Person A on the street why she was behaving the way she was, she responded, "Because you hit me."

I do not find the recantation Person A made to Sergeant Mullen on October 28th to be a reliable statement. In that statement, Person A claimed that Respondent had not struck her, contrary to her five previous assertions that he had done so. In her statement, Person A offered no plausible explanation for why she had knowingly made a false claim against Respondent and repeated it several times, except to assert that she had consumed more alcohol than she should have. While the consistency of the previous statements and the conditions under which they were made lead to a reasonable conclusion that they were truthful, the circumstances of the recantation seem less reliable.

I do not find Respondent to be a reliable narrator of the material facts of this case, as his interest in avoiding responsibility for an act against Person A and the state of his family is manifest. In addition, Respondent has a strong incentive to relate the events of the evening of October 16th in a self-serving manner to protect his professional standing. Finally, portions of Respondent's testimony with respect to the aftermath of the altercation inside his apartment are implausible and unworthy of belief.

Respondent has urged this tribunal to dismiss the allegations made by Person A as those of a drunkard. Aside from lacking any credible independent evidence of Person A's drunkenness at the time of the altercation, his assertion is contradicted by the observations of three witnesses who detected the smell of alcohol but did not testify that Person A was drunk. Sergeant Keag testified affirmatively that during her interview with

Person A, she did not discern any issues with Person A's ability to either perceive the events of the evening or to report them. Moreover, Person A herself admitted that she had been drinking preceding the altercation but also indicated that Respondent had had three to four drinks as well. Her admission to this unflattering aspect of her behavior enhances, rather than detracts from, her credibility.

Respondent testified that he videotaped Person A because she was behaving irrationally. Respondent did, however, concede that he asked Person A, while taping her, why she was behaving the way she was and she replied, "Because you hit me." Since no videotape was admitted into evidence, these assertions remain uncorroborated.

Finally, Respondent's assertion that after he retrieved Minor 4 from Person A's custody on the street, he returned to his apartment with her unconcerned about Person A, Minor 1 and Minor 3's well-being is implausible. If Person A were truly drunk, irrational and on the street with three minor children at approximately 2230 hours, it is unlikely that as a father, let alone a New York City Detective, he would have had no concern for leaving his minor children in her custody. It is much more likely that Respondent embellished whatever Person A's state of alleged inebriation actually was in an attempt to undermine her credibility.

For all the foregoing reasons, I find Respondent Guilty of initiating a verbal altercation with Person A, which became physical when he struck her three times. I further find that such altercation was to the prejudice of good order and efficiency of this Department.

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined (*see Matter of Pell v. Board of Education*, 34 NY 2d 222 [1974]). Respondent

was appointed to the Department on June 30, 1992. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department has requested that Respondent suffer a penalty of 15 vacation days. The Department asserts that their recommendation takes into account Respondent's exemplary record with the Department as a mitigating factor. I find that recommended penalty insufficient.

Respondents in previous cases have suffered penalties of 30 to 32 vacation days for engaging in altercations with an intimate partner (*Disciplinary Case* [REDACTED])

[REDACTED] [Thirteen-year police officer with two prior adjudications forfeits 30 suspension days already served for punching [REDACTED] in the face. The evidence established that they argued because Respondent had texted a neighbor's daughter that she had a nice body. This case marks the second time within a five-year period that Respondent had been found guilty of being involved in a physical altercation with [REDACTED]

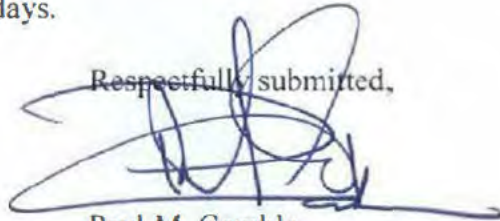
[REDACTED] *Disciplinary Case* [REDACTED] [Eight-year police officer, with one prior adjudication for being absent from his residence without permission while on sick report, forfeited 32 pre-trial suspension days for (i) being involved in a verbal and physical altercation with his girlfriend, and (ii) removing his girlfriend's cell phone from her possession as she attempted to communicate with 911 operators and request police assistance. While driving home from a night out, Respondent and his girlfriend got into an argument, during which she called 911 on her cell phone. The evidence at trial established that Respondent grabbed the phone out of her hand, did not return it to her and eventually dragged her out of his car]).

Respondents in several negotiated cases have suffered penalties from 15 to 20 days for engaging in verbal and physical altercations with intimate partners (*Disciplinary Case No.* [REDACTED] [Twelve-year detective with no disciplinary history negotiated a penalty of 15 days and counseling for engaging in a physical altercation with his [REDACTED]]; *Disciplinary Case No.* [REDACTED] One-year police officer with no prior disciplinary history negotiated a sixteen vacation day penalty for participating in a verbal and physical altercation with his live-in girlfriend]; *Disciplinary Case No.* [REDACTED] Seven-year police officer with no prior disciplinary history negotiated a penalty of 20 vacation days for engaging in a physical altercation with the mother of his children in the presence of those children]; *Disciplinary Case No.* [REDACTED] [Ten-year police officer with no prior disciplinary record negotiated a penalty of 20 suspension days already served and counseling for engaging in a physical altercation with the mother of his child during which he bit her and threw a toy at her, striking her in the leg]; *Disciplinary Case No.* [REDACTED] Eleven-year detective with no prior disciplinary history negotiated a penalty of 20 vacation days for threatening to kill two members of her family during a verbal altercation and subsequently striking one of the family members in the face]).

In this case, the evidence established that Respondent struck Person A three times in the face, then pursued her from their home as she tried to escape with their children, while asserting that he was filming her so that he could prove that she was behaving irrationally. The precipitating event for this onslaught was the failure to abide by a household rule that electronic instruments were to be turned off at 2200 hours. This series of violent and intimidating acts was committed in the presence of Respondent's

minor children and spilled onto the public streets of Respondent's neighborhood. I further find that the commission of these acts by a 24-year member of this Department is an aggravating, rather than mitigating circumstance. I find Respondent's lack of candor during this trial to be another aggravating circumstance. Accordingly, I recommend that Respondent's penalty be the forfeiture of 20 days.

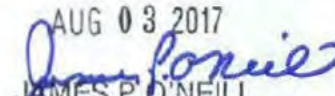
Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'Paul M. Gamble', written over the typed name.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

AUG 03 2017

A handwritten signature in blue ink, appearing to read 'James P. O'Neill', written over the typed name.

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE JIM ROSADO
TAX REGISTRY NO. 902321
DISCIPLINARY CASE NO. 2015-14937

On his last three annual performance evaluations, Respondent received an overall rating of 4.5 "Extremely Competent/Highly Competent." He has been awarded seven medals for Excellent Police Duty and one medal for Meritorious Police Duty. [REDACTED]

On February 5, 2016, Respondent was placed on Level 1 Discipline Monitoring, which remains ongoing.

Paul M. Gamble
Assistant Deputy Commissioner Trials